

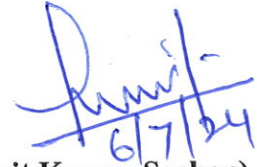
No. K-43019/9/2024-SEZ
Government of India
Ministry of Commerce and Industry
Department of Commerce
(SEZ Section)

Vanijya Bhawan, New Delhi
Dated the 06th July, 2024

OFFICE MEMORANDUM

Subject: 120th Meeting of the Board of Approval on Special Economic Zones (SEZs) held on 18th June, 2024— Reg.

Please find enclosed herewith Minutes of the 120th meeting of the Board of Approval for SEZs held on 18th June, 2024 under the Chairmanship of Shri Sunil Barthwal, Secretary, Department of Commerce for information and necessary action.



(Sumit Kumar Sachan)

Under Secretary to the Government of India
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To

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5. Joint Secretary, Ministry of Shipping, Transport Bhawan, New Delhi.
6. Joint Secretary (E), Ministry of Petroleum and Natural Gas, Shastri Bhawan, New Delhi
7. Joint Secretary, Ministry of Agriculture, Plant Protection, Krishi Bhawan, New Delhi.
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9. Joint Secretary, Department of Biotechnology, Ministry of Science and Technology, 7th Floor, Block 2, CGO Complex, Lodhi Road, New Delhi - 110 003.
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11. Secretary, Department of Electronics & Information Technology, Electronics Niketan, 6, CGO Complex, New Delhi. (Fax: 24363101)
12. Joint Secretary (IS-I), Ministry of Home Affairs, North Block, New Delhi (Fax: 23092569)
13. Joint Secretary (C&W), Ministry of Defence, Fax: 23015444, South Block, New Delhi.
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15. Joint Secretary & Legislative Counsel, Legislative Department, M/o Law & Justice, A-Wing, Shastri Bhawan, New Delhi. (Tel: 23387095).
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17. Secretary, Department of Chemicals & Petrochemicals, Shastri Bhawan, New Delhi
18. Joint Secretary, Ministry of Overseas Indian Affairs, Akbar Bhawan, Chanakyapuri, New Delhi. (Fax: 24674140)
19. Chief Planner, Department of Urban Affairs, Town Country Planning Organisation, Vikas Bhawan (E-Block), I.P. Estate, New Delhi. (Fax: 23073678/23379197)
20. Director General, Director General of Foreign Trade, Department of Commerce, Udyog Bhawan, New Delhi.
21. Director General, Export Promotion Council for EOUs/SEZs, 8G, 8th Floor, Hansalaya Building, 15, Barakhamba Road, New Delhi – 110 001 (Fax: 223329770)
22. Dr. Rupa Chanda, Professor, Indian Institute of Management, Bangalore, Bennerghata Road, Bangalore, Karnataka
23. Development Commissioner, Noida Special Economic Zone, Noida.
24. Development Commissioner, Kandla Special Economic Zone, Gandhidham.
25. Development Commissioner, Falta Special Economic Zone, Kolkata.
26. Development Commissioner, SEEPZ Special Economic Zone, Mumbai.
27. Development Commissioner, Madras Special Economic Zone, Chennai
28. Development Commissioner, Visakhapatnam Special Economic Zone, Visakhapatnam
29. Development Commissioner, Cochin Special Economic Zone, Cochin.
30. Development Commissioner, Indore Special Economic Zone, Indore.
31. Development Commissioner, Mundra Special Economic Zone, 4th Floor, C Wing, Port Users Building, Mundra (Kutch) Gujarat.
32. Development Commissioner, Dahej Special Economic Zone, Fadia Chambers, Ashram Road, Ahmedabad, Gujarat
33. Development Commissioner, Navi Mumbai Special Economic Zone, SEEPZ Service Center, Central Road, Andheri (East), Mumbai – 400 096
34. Development Commissioner, Sterling Special Economic Zone, Sandesara Estate, AtladraPadra Road, Vadodara - 390012
35. Development Commissioner, Andhra Pradesh Special Economic Zone, Udyog Bhawan, 9th Floor, Siripuram, Visakhapatnam – 3
36. Development Commissioner, Reliance Jamnagar Special Economic Zone, Jamnagar, Gujarat
37. Development Commissioner, Surat Special Economic Zone, Surat, Gujarat
38. Development Commissioner, Mihan Special Economic Zone, Nagpur, Maharashtra
39. Development Commissioner, Sricity Special Economic Zone, Andhra Pradesh.
40. Development Commissioner, Mangalore Special Economic Zone, Mangalore.

41. Government of Andhra Pradesh, Principal Secretary and CIP, Industries and Commerce Department, A.P. Secretariat, Hyderabad – 500022. (Fax: 040-23452895).
42. Government of Telangana, Special Chief Secretary, Industries and Commerce Department, Telangana Secretariat Khairatabad, Hyderabad, Telangana.
43. Government of Karnataka, Principal Secretary, Commerce and Industry Department, VikasSaudha, Bangalore – 560001. (Fax: 080-22259870)
44. Government of Maharashtra, Principal Secretary (Industries), Energy and Labour Department, Mumbai – 400 032.
45. Government of Gujarat, Principal Secretary, Industries and Mines Department Sardar Patel Bhawan, Block No. 5, 3rd Floor, Gandhinagar – 382010 (Fax: 079-23250844).
46. Government of West Bengal, Principal Secretary, (Commerce and Industry), IP Branch (4th Floor), SEZ Section, 4, Abanindranath Tagore Sarani (Camac Street) Kolkata – 700 016
47. Government of Tamil Nadu, Principal Secretary (Industries), Fort St. George, Chennai – 600009 (Fax: 044-25370822).
48. Government of Kerala, Principal Secretary (Industries), Government Secretariat, Trivandrum – 695001 (Fax: 0471-2333017).
49. Government of Haryana, Financial Commissioner and Principal Secretary), Department of Industries, Haryana Civil Secretariat, Chandigarh (Fax: 0172-2740526).
50. Government of Rajasthan, Principal Secretary (Industries), Secretariat Campus, Bhagwan Das Road, Jaipur – 302005 (0141-2227788).
51. Government of Uttar Pradesh, Principal Secretary, (Industries), LalBahadurShastri Bhawan, Lucknow – 226001 (Fax: 0522-2238255).
52. Government of Punjab, Principal Secretary Department of Industry & Commerce Udyog Bhawan), Sector -17, Chandigarh- 160017.
53. Government of Puducherry, Secretary, Department of Industries, Chief Secretariat, Puducherry.
54. Government of Odisha, Principal Secretary (Industries), Odisha Secretariat, Bhubaneswar – 751001 (Fax: 0671-536819/2406299).
55. Government of Madhya Pradesh, Chief Secretary, (Commerce and Industry), VallabhBhavan, Bhopal (Fax: 0755-2559974)
56. Government of Uttarakhand, Principal Secretary, (Industries), No. 4, Subhash Road, Secretariat, Dehradun, Uttarakhand
57. Government of Jharkhand (Secretary), Department of Industries Nepal House, Doranda, Ranchi – 834002.
58. Union Territory of Daman and Diu and Dadra Nagar Haveli, Secretary (Industries), Department of Industries, Secretariat, Moti Daman – 396220 (Fax: 0260-2230775).
59. Government of Nagaland, Principal Secretary, Department of Industries and Commerce), Kohima, Nagaland.
60. Government of Chattishgarh, Commissioner-cum-Secretary Industries, Directorate of Industries, LIC Building Campus, 2nd Floor, Pandri, Raipur, Chhattisgarh (Fax: 0771-2583651).

Copy to:- PPS to CS/ PPS to AS(LSS)/ PPS to JS(VA)/ PPS to DIR(SNS).

Minutes of the 120th meeting of the Board of Approval for SEZs
held on 18th June, 2024 at Pune

The One Hundred and Twentieth (120th) meeting of the Board of Approval (BoA) for Special Economic Zones (SEZs) was held on 18th June, 2024 under the chairmanship of Shri Sunil Barthwal, Secretary, Department of Commerce at Pune through hybrid mode. The list of participants is at **Annexure-I**.

The item-wise decisions taken by the Board are as under:

120.1: Ratification of the minutes of the 119th meeting of the Board of Approval held on 06th March, 2024.

During ratification of the minutes of the 119th meeting of the BoA, DGEP raised the issue regarding insufficient documents provided to them w.r.t. Item Nos. 119.7(i), 119.7(ii), 119.7(ix) and 119.9(iv). In response, DoC has expeditiously sent the requisite documents to DGEP as sought by them in connection to the above agenda items. Further, the Board also directed that in all cases of 11B demarcation, there shall be a clear certification of Specified Officer and the Development Commissioner that the Developer has refunded the duty as per the provisions of Rule 11B of SEZ Rules, 2006 and Instruction No. 115 dated 9th April, 2024 issued by Department of Commerce. Accordingly, the Board ratified the minutes of the 119th meeting of the BoA for SEZs held on 06th March, 2024.

120.2: Request for extension of validity of formal approval (1 proposal)

120.2(i) Request of M/s. Phoenix Spaces Pvt. Ltd. for further extension of the validity period of formal approval, granted for setting up of IT/ITES SEZ at Sy. No. 285, Puppalguda beyond 30.03.2024.

The Board, after deliberations, **approved** extension of the validity of formal approval for one year, i.e., upto 30th March, 2025.

120.3: Request for extension of LoA of Unit (1 proposals)

120.3(i) Request of M/s. Wockhardt Ltd. Unit 2, located at Plot No. 6 in Wockhardt Infrastructure Development Ltd.-SEZ, Shendre, Aurangabad, Maharashtra, for extension of Letter of Approval dated 25.02.2013, beyond 10th year, for the period of one year, from 01.03.2024 up to 28.02.2025.

The Board, after deliberations, **approved** extension of validity of LoA for one year, i.e., upto 28th February, 2025.

120.4: Request for setting up of new SEZ (2 proposals)

120.4(i) Request of M/s. Delhi International Airport Limited (DIAL) for setting up of two Multi-Product SEZ (SEZ-1) at Indira Gandhi International Airport, New Delhi over an area of 2.02 Ha.



120.4(ii) Request of M/s. Delhi International Airport Limited (DIAL) for setting up of a Multi-Product SEZ (SEZ-2) at Indira Gandhi International Airport, New Delhi over an area of 2.02 Ha.

The Board observed that both proposals, Item No. 120.4(i) and 120.4(ii), are part of the PM GatiShakti National Master Plan. The proposed SEZs represent a pioneering effort to establish SEZs within an airport to enhance air cargo operations. However, the proposals do not meet the extant provisions for minimum area requirement stipulated in Rule 5(2) of the SEZ Rules, 2006. The Board noted that the proposal to amend the provisions of SEZ Rules in this regard has been forwarded by Department of Commerce (DoC) and is under active consideration of Department of Revenue (DoR).

Given the strategic significance and potential of these SEZs, the Board, after deliberations, decided to defer the proposals and directed DoC to expedite the process of suitable amendment in the extant rules in consultation with DoR.

120.5: Request for approval of 'Restricted' item (1 proposal)

120.5(i) Proposal of M/s. ASF Insignia SEZ Private Limited, Developer for approval of 'Restricted' item to carry on authorized operations in the IT/ITES SEZ at Village GwalPahari, Gurugram (Haryana).

The Board, after deliberations, approved the request of M/s. ASF Insignia SEZ Private Limited, Developer, for duty free procurement of 'Restricted' items namely "1000 Kg Refrigerant Gas-Tetrafluoroethene Gas (HFC-134a) (HS Code: 29034500)" for estimated cost of Rs.8.00 lakhs, to carry on authorized operation namely 'Air Conditioning of processing area' in the IT/ITES SEZ at Village Gwal Pahari, Gurugram (Haryana) in terms of proviso to Rule 27(1) of SEZ Rules, 2006.

120.6: Partial/full de-notification (3 proposals)

120.6(i) Request of M/s. Information Technology Park Limited for partial de-notification of 1.78 Ha out of 10.87 Ha of their IT/ITES SEZ at Bangalore, Karnataka.

The Board, after deliberations, recommended the partial de-notification of 1.78 Ha out of 10.87 Ha of M/s. Information Technology Park Limited, IT/ITES SEZ at Bangalore, Karnataka.

120.6(ii) Request of M/s. Mahindra World City Developers Ltd. for partial de-notification of 42.073 Ha out of 288.406 Ha of their Multi-sector SEZ at Thenmelpakkam Village, Chengalpattu District, Tamil Nadu.

The Board, after deliberations, recommended the partial de-notification of 42.073 Ha out of 288.406 Ha of M/s. Mahindra World City Developers Limited, Multi-sector SEZ at Thenmelpakkam Village, Chengalpattu District, Tamil Nadu.

120.6(iii) Request of M/s. Electronics Corporation of Tamil Nadu (ELCOT) Ltd. for partial de-notification of 18.9535 Ha out of 70.01 Ha of their Multi-Sector SEZ at Hosur, Tamil Nadu.



The Board, after deliberations, **recommended** the partial de-notification of 18.9535 Ha out of 70.01 Ha of M/s. Electronics Corporation of Tamil Nadu (ELCOT) Limited, Multi-Sector SEZ at Hosur, Tamil Nadu.

120.7: Request for conversion of processing area into non-processing area under Rule 11(B) (1 proposal)

120.7(i) Request of M/s. Shyamaraju & Company (India) Private Limited, Developer, for demarcation of SEZ Processing Built-up area (201654.29 sq.mtr.) as Non-Processing Area in terms of Rule 11 B of SEZ Rules, 2006.

The Board, after deliberations, **approved** the request of M/s. Shyamaraju & Company (India) Private Limited, Developer, for demarcation of 201654.29 sq.mtr. built-up area as Non-Processing Area in terms of Rule 11B of SEZ Rules, 2006 subject to the conditions that No-Dues Certificate as well as other necessary documents are received from the Developer and Certification of duty refund by Specified Officer and DC in the prescribed format is submitted to DoC.

120.8: Miscellaneous (6 cases)

120.8(i) Request of M/s. Indian Oil Corporation Limited (IOCL), Co-Developer, Puthuvypeen SEZ, Ernakulam for restoration of duty/tax benefits and continuation of Co-Developer status.

The Board, after deliberations, **approved** the request of M/s. IOCL for restoration of duty/tax benefits and continuation of Co-Developer status in Puthuvypeen SEZ, Ernakulam.

120.8(ii) Request of M/s. Impetus Technologies India Private Limited, developer of Impetus IT/ITES SEZ at Survey No. 291, Village - Badiyakeema, Indore, Madhya Pradesh for extension of time period for construction of the minimum built up area for a further period of one year beyond the stipulated period of ten years from the date of Notification of the SEZ i.e. beyond 05.02.2024 and up to 05.02.2025.

The Board, after deliberations, **approved** the extension of time period for construction of the minimum built up area for a further period of one year, i.e. beyond 05.02.2024 and up to 05.02.2025.

120.8(iii) Cancellation of Formal Approval pertaining to M/s. Madhusheel Infra Projects Pvt. Ltd, SEZ for IT/ITES at Sy. No. 229-232, Gaganpahad Village, Rajendra Nagar Mandai, Ranga Reddy District, Telangana.

The Board observed that DC, VSEZ had issued Order-in-Original dated 19.03.2024 to M/s. Madhusheel Infra Projects Pvt. Ltd. wherein it was proposed to initiate action for cancellation of the Formal Approval dated 06.10.2008 granted to them.

As the reasonable opportunity has already been given to M/s. Madhusheel Infra Projects Pvt. Ltd., the Board, after deliberations, **cancelled** the Formal Approval dated 06.10.2008.

120.8(iv) Request of M/s. Luxoft India LLP for transfer of their unit from M/s. RGA Tech Park SEZ, Bangalore, Karnataka to M/s. Quadron Business Park Pvt. Ltd, SEZ, Pune.

The Board, after deliberations, approved the request of M/s. Luxoft India LLP for transfer of their Unit from M/s. RGA Tech Park SEZ, Bangalore, Karnataka to M/s. Quadron Business Park Pvt. Ltd, SEZ, Pune subject to the following conditions: -

- i. The unit which had availed of tax incentives under the Income Tax Act for a certain period of time would be eligible for such incentives for the balance period only, as allowed under the Income Tax Act, after its relocation.
- ii. The assessing officer under the Income Tax Act, shall have the right to assess the taxability arising out of the transfer of the unit.
- iii. The unit would be liable to refund the duty incentives availed on such assets which are not shifted to the new location of the unit.

120.8(v) Request of M/s. Adani Power (Jharkhand) Ltd, a sector-specific SEZ for Power at Godda District, Jharkhand, for opening of two additional permanent gates in the processing area of their SEZ.

The Board, after deliberations, approved the request of M/s. Adani Power (Jharkhand) Ltd. for opening of two additional permanent gates in the processing area of their SEZ subject to the condition that any additional cost so incurred on deployment of any extra manpower for manning the said gates will be borne by the Developer. The Board also directed that such decisions may be taken at the level of the concerned DC in future and the matter may not be brought to the Board..

120.8(vi) Request of M/s. Virtus IT Services Private Limited for cancellation of Co-Developer status in Electronics Technology Parks SEZ Phase-III, Trivandrum.

The Board, after deliberations, approved the request of M/s. Virtus IT Services Private Limited for cancellation of Co-Developer status in Electronics Technology Parks SEZ Phase-III, Trivandrum.

Decision on Supplementary Agenda:

120.9 Request of M/s. Rain CII Carbon (Vizag) Limited, a unit in M/s. APIIC Multi product SEZ, Atchuthapuram for import of RPC &CPC with reference to CAQM Order Dt. 15.02.2024.

The Board, after deliberations, regularised the provisional and limited permission to import 100,000 MT of RPC granted to the Unit by DoC vide letter dated 25th April, 2024.

Further, the Board approved import of RPC as per the quantities permitted in CAQM order dated 15.02.2024 and APPCB CFO/CTO permit, subject to the conditions imposed by para 10(II)(i) of the CAQM Order dated 15.02.2024.

As regards import of CPC, the Board deferred the matter with a direction to formulate a working group under DC, VSEZ and with members from DoC, CAQM, MoEF&CC, DGFT and DGEP to re-examine the matter.



120.10 Request of M/s. Raj Rajeshwar Lalita Tripursundari Private Limited, Atchutapuram, Anakapalli Dist. APSEZ Unit for permission to import of qty 69,255 MT Ferro Manganese Slag for authorized operations.

The Board, after deliberations, approved import of qty 69,255 MT Ferro Manganese Slag for authorized operations by M/s. Raj Rajeshwar Lalita Tripursundari Private Limited, Atchutapuram, Anakapalli Dist. APSEZ Unit.

120.11 Proposal of M/s. Skyroot Aerospace Pvt. Ltd. for (i) Inclusion of Satellite launch services from ISRO facilities (ii) Waiver for bringing back the sub-contracted goods and sending the same to the ISRO satellite launch site (iii) Waiver from the condition of bringing back the procured goods first to SEZ unit from the vendor unit and then ship to ISRO launch facility and (iv) Inclusion of business support services to be availed from ISRO/ISTRAC/any other similar agency and not at Skyroot SEZ Unit for the authorized operations of the SEZ unit.

The Board observed that this is an innovative proposal from a new emerging sector and as such, it requires certain amendments in extant provisions of SEZ Rules. The Board, after deliberations, deferred the proposal with a direction to hold Inter-Ministerial Consultation to look at the aspects related to the proposal and take necessary action including amending the extant rules, where necessary.

120.12: Appeal (3 cases)

120.12(i) Appeal filed by M/s. Margo Impex Private Limited against the decision of UAC, NSEZ meeting held on dated 04.04.2024.

120.12(ii) Appeal filed by M/s. Srikaram Prescience Private Limited against the decision of UAC, NSEZ meeting held on dated 04.04.2024.

The Board heard the representatives of both the Units [item no. 120.12(i) & 120.12(ii)] and observed that the matter requires to be examined holistically. Further, the Board was of the view that for further examination of the matter, documents/details of the above Units in regard to their imports & exports, business model, DTA transfer etc. are required. Accordingly, the Board, after deliberations, deferred both the appeals and directed DoC to seek these documents/details from the appellants.

120.12(iii) Appeal filed by M/s. Tristar Global Traders Pvt. Ltd. against the decision of UAC, FSEZ regarding cancellation of their LoA.

The Board heard the appellant. The appellant informed the Board that they are willing to run their business and need three months' time to start it again. The Board, after deliberations, made the decision of UAC, FSEZ regarding cancellation of the LoA of the Unit null and void and decided to extend the validity of LoA of the Unit for a further period of one year. Further, the Board directed DC, FSEZ to review the progress of the Unit after six months and report to DoC thereon.



120.13: Request for conversion of processing area into non-processing area under Rule 11(B) (3 proposals)

120.13(i) Request of M/s. Candor Kolkata One Hi-Tech Structures Private Limited for conversion of Retail area and Common area of Level – G of Tower A I, Tower A II, Tower A III, Tower B II, B III, Tower C I, Tower G III and Basement area of Block B, C and dedicated ramp to a Non-Processing Area in terms of Rule 11 B of SEZ Rules, 2006.

The Board, after deliberations, approved the request of M/s. Candor Kolkata One Hi-Tech Structures Private Limited for demarcation of (a) 12,685.61 Square meter (Level – G of Tower A I, Tower A II, Tower A III, B II, B III, C I, G III) and (b) 20,494 square meter (Basement area of Block B, C and dedicated ramp) area as Non-Processing Area in terms of Rule 11B of SEZ Rules, 2006 subject to the conditions that No-Dues Certificate as well as other necessary documents are received from the Developer and Certification of duty refund by Specified Officer and DC in the prescribed format is submitted to DoC.

120.13(ii) Request of M/s. EON Infrastructure Pvt. Ltd, Phase-I for approval of Demarcation of Built up Floors as Non-Processing Area (NPA) of notified IT/ITES SEZ.

The Board, after deliberations, approved the request of M/s. EON Infrastructure Pvt. Ltd, Phase I, for demarcation of 69,431.07 sq. mtr. built-up area as Non-Processing Area in terms of Rule 11B of SEZ Rules, 2006 subject to the conditions that No-Dues Certificate as well as other necessary documents are received from the Developer and Certification of duty refund by Specified Officer and DC in the prescribed format is submitted to DoC.

120.13(iii) Request of M/s. Oxygen Business Park Private Limited, developer of IT/ITES SEZ at Plot No. 7, Sector-144, Noida (Uttar Pradesh) for demarcation of additional built-up processing area of SEZ as Non-Processing Area under Rule 11B of SEZ Rules, 2006.

The Board, after deliberations, approved the request of M/s. Oxygen Business Park Private Limited, Developer, for demarcation of 10154.00 Square meter built-up processing area of 10th, 11th & 12th floor of Tower-3 as Non-Processing Area in terms of Rule 11B of SEZ Rules, 2006 subject to the conditions that No-Dues Certificate as well as other necessary documents are received from the Developer and Certification of duty refund by Specified Officer and DC in the prescribed format is submitted to DoC.

120.14: Request for partial de-notification (5 proposals)

120.14(i) Request of M/s. Manyata promoters Pvt. Ltd., an IT/ITES SEZ at Bangalore, Karnataka for partial de-notification of 4.9026 Ha out of 24.1017 Ha.

The Board, after deliberations, recommended the partial de-notification of 4.9026 Ha out of 24.1017 Ha of M/s. Manyata promoters Pvt. Ltd., an IT/ITES SEZ at Bangalore, Karnataka.

120.14(ii) Request of M/s. Magarpatta Township Development and Construction Company Ltd., an Electronics Hardware and Software including IT/ITES SEZ at



Magarpatta City, Village Hadapsar, District Pune, Maharashtra for partial de-notification of 0.66 Ha out of 11.98 Ha.

During discussion, DGEP differed with the DoC's clarification dated 10.04.2024 regarding depreciation. In this regard, DGEP was clarified that a harmonious reading of the provision of Rule 49 in conjunction with the provisions of Rule 14 of SEZ Rules, 2006 would lead to the inference that the benefit of depreciation of value provided under Rule 49 would be available to the Developers also at the time of de-bonding / de-notification, as the case may be. DGEP agreed to the above clarification.

Accordingly, the Board, after deliberations, **recommended** the partial de-notification of 0.66 Ha out of 11.98 Ha of M/s. Magarpatta Township Development and Construction Company Ltd., IT/ITES SEZ at Magarpatta City, Village Hadapsar, District Pune, Maharashtra.

120.14(iii) Request of M/s. GMR Hyderabad Aviation SEZ Limited for partial de-notification of 3.22 Hectares out of 84.10 Hectares of their Multi-Sector SEZ at Mamidipalli Village, Shamshabad Mandal, Ranga Reddy District, Telangana.

The Board, after deliberations, **recommended** the partial de-notification of 3.22 Hectares out of 84.10 Hectares of M/s. GMR Hyderabad Aviation SEZ Limited, Multi-Sector SEZ at Mamidipalli Village, Shamshabad Mandal, Ranga Reddy District, Telangana.

120.14(iv) Request of M/s. Kerala State Information Technology Infrastructure Limited (KSITIL) for partial de-notification of 5.0609 Ha out of 7.4909 Ha of their IT/ITES SEZ at Muringur and Thekkumuri Villages, Chalakudy Taluk, Koratty Panchayat, Thrissur District, Kerala.

The Board, after deliberations, **recommended** the partial de-notification of 5.0609 Ha out of 7.4909 Ha of M/s. KSITIL, IT/ITES SEZ at Muringur and Thekkumuri Villages, Chalakudy Taluk, Koratty Panchayat, Thrissur District, Kerala.

120.14(v) Request of M/s. Kerala State Information Technology Infrastructure Limited (KSITIL) for partial de-notification of 11.4525 Ha out of 24.5313 Ha of their IT/ITES SEZ at Pallipuram Village, Cherthala Taluk, Alappuzha District, Kerala.

The Board, after deliberations, **recommended** the partial de-notification of 11.4525 Ha out of 24.5313 of M/s. KSITIL, IT/ITES SEZ at Pallipuram Village, Cherthala Taluk, Alappuzha District, Kerala.

120.15: Request for co-developer status (7 proposals)

120.15(i) Request of M/s. Wynfra Cybercity LLP for grant of co-developer status in the Electronic Hardware and Software including IT/ITES SEZ of M/s. KGISL Infrastructure Private Limited located at Saravanampatti, Coimbatore.

The Board, after deliberations, **approved** the proposal of M/s. Wynfra Cybercity LLP for Co-developer status in M/s. KGISL Infrastructure Private Limited for Office space, Food Services including Cafeteria, food court(s), coffee shops, canteens and catering facilities over an area of 1.89.50 hectares, in accordance with the Co-developer agreement dated 08.04.2024

entered into with the Developer subject to standard terms and conditions as per the SEZ Act and Rules. Further, the Assessing Officer will have the right to examine the taxability of the income by way of lease rentals/down payment/premium etc. for the purpose of assessment under the prevalent Income-tax Act, 1961 and Income-tax Rules, 1962 as amended from time to time. The lease period shall be in accordance with DoC's Instruction No. 98 dated 29th August, 2019.

120.15(ii) Request of M/s. Shivalik SEZ Projects LLP, Ahmedabad for approval as Co-Developer within the processing Area in GIFT-Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited.

The Board, after deliberations, approved the proposal of M/s. Shivalik SEZ Projects LLP for Co-developer status in M/s. GIFT SEZ Limited for Development, construction, maintenance, and operation of commercial building in Block-13 in the processing area over an area of 47379.54 square meters, in accordance with the Co-developer agreement dated 01.02.2024 entered into with the Developer subject to standard terms and conditions as per the SEZ Act and Rules. Further, the Assessing Officer will have the right to examine the taxability of the income by way of lease rentals/down payment/premium etc. for the purpose of assessment under the prevalent Income-tax Act, 1961 and Income-tax Rules, 1962 as amended from time to time. The lease period shall be in accordance with DoC's Instruction No. 98 dated 29th August, 2019.

120.15(iii) Request of M/s. ACubetech Solutions Private Limited for Co-developer status in M/s. ELCOT, Multi-Sector SEZ at Village Viswanathapuram, Hosur Taluk, Krishnagiri District, Tamil Nadu.

The Board, after deliberations, approved the proposal of M/s. ACubetech Solutions Private Limited for Co-developer status in M/s. ELCOT to create, operate and maintain Infrastructure facilities within the Zone over an area of 0.7851 hectares, in accordance with the Co-developer agreement dated 06.03.2024 entered into with the Developer subject to standard terms and conditions as per the SEZ Act and Rules. Further, the Assessing Officer will have the right to examine the taxability of the income by way of lease rentals/down payment/premium etc. for the purpose of assessment under the prevalent Income-tax Act, 1961 and Income-tax Rules, 1962 as amended from time to time. The lease period shall be in accordance with DoC's Instruction No. 98 dated 29th August, 2019.

120.15(iv) Request of M/s. WOLP II Warehouse VA Private Limited for Co-developer status in M/s. Jawaharlal Nehru Port Authority, a Multi-sector SEZ at Administration Building, Nhava Sheva, Taluka Uran, Navi Mumbai.

The Board, after deliberations, approved the proposal of M/s. WOLP II Warehouse VA Private Limited for Co-developer status in M/s. Jawaharlal Nehru Port Authority for Multi-Sector (i.e. Construction of buildings and creation of infrastructure for SEZ/FTWZ units, with default authorized operations as per DoC's Instruction No. 50 dated 15.03.2010) over an area of 4.080 Ha. (40806 Sq.mtrs.), in accordance with the Co-developer agreement dated 21.03.2024 entered into with the Developer subject to standard terms and conditions as per the SEZ Act and Rules. Further, the Assessing Officer will have the right to examine the taxability of the income by way of lease rentals/down payment/premium etc. for the purpose of assessment under the prevalent Income-tax Act, 1961 and Income-tax Rules, 1962 as



amended from time to time. The lease period shall be in accordance with DoC's Instruction No. 98 dated 29th August, 2019.

120.15(v) Request of M/s. WOLP II Warehouse VIA Private Limited for Co-developer status in M/s. Jawaharlal Nehru Port Authority, a Multi-sector SEZ at Administration Building, Nhava Sheva, Taluka Uran, Navi Mumbai.

The Board, after deliberations, **approved** the proposal of M/s. WOLP II Warehouse VIA Private Limited for Co-developer status in M/s. Jawaharlal Nehru Port Authority for Multi-Sector (i.e. Construction of buildings and creation of infrastructure for SEZ/FTWZ units, with default authorized operations as per DoC's Instruction No. 50 dated 15.03.2010) over an area of 18.162 Ha. (1,81,625 Sq.mtrs.), in accordance with the Co-developer agreement dated 21.03.2024 entered into with the Developer subject to standard terms and conditions as per the SEZ Act and Rules. Further, the Assessing Officer will have the right to examine the taxability of the income by way of lease rentals/down payment/premium etc. for the purpose of assessment under the prevalent Income-tax Act, 1961 and Income-tax Rules, 1962 as amended from time to time. The lease period shall be in accordance with DoC's Instruction No. 98 dated 29th August, 2019.

120.15(vi) Request of M/s. Bakeri Spaces LLP, Ahmedabad for approval as Co-Developer within the processing Area in GIFT-Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited.

The Board, after deliberations, **approved** the proposal of M/s. Bakeri Spaces LLP for Co-developer status in M/s. GIFT SEZ Limited for development of commercial project on Plot Nos. 14-D, 14-E, in Block No. 14 over land area admeasuring 4677 square meters, for 9,50,000 square feet built-up area, in accordance with the Co-developer agreement dated 19.04.2024 entered into with the Developer subject to standard terms and conditions as per the SEZ Act and Rules. Further, the Assessing Officer will have the right to examine the taxability of the income by way of lease rentals/down payment/premium etc. for the purpose of assessment under the prevalent Income-tax Act, 1961 and Income-tax Rules, 1962 as amended from time to time. The lease period shall be in accordance with DoC's Instruction No. 98 dated 29th August, 2019.

120.15(vii) Request of M/s. Monarch Skyline for Co-developer status in M/s. Adani Ports and Special Economic Zone, Mundra.

The Board, after deliberations, **approved** the proposal of M/s. Monarch Skyline for Co-developer status in M/s. Adani Ports and Special Economic Zone, Mundra for Develop, Operate and maintain a Hotel and service apartment, multi cuisine coffee shop, recreational and entertainment facilities speciality restaurant and convention centre with related facilities (Rooms, Reception Center, Travel Desk, Bar, Banquet Hall/Conference Hall, Gym, and Spa) in the APSEZ, Mundra, over an area of 0.404686 Hectares, in accordance with the Co-developer agreement dated 28.05.2024 entered into with the Developer subject to standard terms and conditions as per the SEZ Act and Rules. Further, the Assessing Officer will have the right to examine the taxability of the income by way of lease rentals/down payment/premium etc. for the purpose of assessment under the prevalent Income-tax Act, 1961 and Income-tax Rules, 1962 as amended from time to time. The lease period shall be in accordance with DoC's Instruction No. 98 dated 29th August, 2019.



120.16: Request for increase in area by Co-developer (1 proposal)

120.16(i) Request of the co-developer M/s. Brigade (Gujarat) Projects Private Limited, Bengaluru for additional area approved for Building No.14-B in Multi Services SEZ at Ratanpur, District Gandhinagar, Gujarat, developed by M/s. GIFT SEZ Limited.

The Board, after deliberations, approved the proposal of M/s. Brigade (Gujarat) Projects Private Limited for additional area in M/s. GIFT SEZ Limited to develop, maintain and operate office building No. 14-B for units to undertake export of services in the processing area of GIFT-SEZ over an additional area of 1,16,000 square feet totalling 3,76,000 (2,60,000 + 1,16,000) square feet, in accordance with the Co-developer agreement dated 12-04-2016 & 18-04-2024 entered into with the Developer subject to standard terms and conditions as per the SEZ Act and Rules. Further, the Assessing Officer will have the right to examine the taxability of the income by way of lease rentals/down payment/premium etc. for the purpose of assessment under the prevalent Income-tax Act, 1961 and Income-tax Rules, 1962 as amended from time to time. The lease period shall be in accordance with DoC's Instruction No. 98 dated 29th August, 2019.

120.17: Request for extension of validity of formal approval (1 proposal)

120.17(i) Request of M/s. State Industries Promotion Corporation of Tamil Nadu Limited (SIPCOT) Industrial Park, Bargur, Krishnagiri District, Tamil Nadu for extension of validity of LOA in respect of Multi Sector SEZ for Granite Processing at Bargur.

The Board, after deliberations, approved extension of the validity of formal approval for one year i.e., upto 31st March, 2025.

120.18: Request for extension of LoA of Unit (2 proposals)

120.18(i) Request of M/s. Biocon Biosphere Limited, a unit in Biocon Limited Special Economic Zone, Bangalore for extension of validity of Letter of Approval for a further period of one year from 12.06.2024 to 11.06.2025 (4th Extension).

The Board, after deliberations, approved extension of validity of LoA for one year i.e., upto 11th June, 2025.

120.18(ii) Request of M/s. Amiga Informatics Pvt. Ltd, a Unit in NSEZ, for extension of the validity of LoA beyond 3rd Year onwards.

The Board, after deliberations, regularised the LoA for three years (from 20.02.2021 to 19.02.2024) and approved further extension of validity of LoA for one year i.e., upto 19th February, 2025.

Decision on Supplementary Agenda II:

120.19: Request for conversion of processing area into non-processing area under Rule 11(B) (4 proposals)



120.19(i) Request of M/s. Milestone Buildcon Private Limited, Developer, for demarcation of SEZ Processing Built-up area (33023 sq.mtr.) as Non-Processing Area in terms of Rule 11 B of SEZ Rules, 2006 – CSEZ.

The Board, after deliberations, approved the request of M/s. Milestone Buildcon Private Limited, Developer, for demarcation of 33023 sq. mtr. built-up processing area as Non-Processing Area in terms of Rule 11B of SEZ Rules, 2006 subject to the conditions that No-Dues Certificate as well as other necessary documents are received from the Developer and Certification of duty refund by Specified Officer and DC in the prescribed format is submitted to DoC.

120.19(ii) Request of M/s. RGA Infrastructure, Developer, for demarcation of SEZ Processing Built-up area (52579.70 sq.mtr.) as Non-Processing Area in terms of Rule 11B of SEZ Rules, 2006 – CSEZ.

The Board, after deliberations, approved the request of M/s. RGA Infrastructure, Developer, for demarcation of 52579.70 sq.mtr. built-up processing area as Non-Processing Area in terms of Rule 11B of SEZ Rules, 2006 subject to the conditions that No-Dues Certificate as well as other necessary documents are received from the Developer and Certification of duty refund by Specified Officer and DC in the prescribed format is submitted to DoC.

120.19(iii) Request of M/s. Divyasree Tech Park Contractors Pvt. Ltd, co-developer for M/s. Lanco Hills Technology Park Pvt. Ltd, IT/ITES SEZ at Manikonda Village, Rajendra Nagar Mandal, Ranga Reddy District, Telangana for demarcation of their SEZ under Rule 11 B of SEZ (Fifth Amendment) Rules, 2023 – VSEZ.

The Board, after deliberations, approved the request of M/s. Divyasree Tech Park Contractors Pvt. Ltd, Developer, for demarcation of 61,879.85 Sq.Mtrs built-up processing area as Non-Processing Area in terms of Rule 11B of SEZ Rules, 2006 subject to the conditions that No-Dues Certificate as well as other necessary documents are received from the Developer and Certification of duty refund by Specified Officer and DC in the prescribed format is submitted to DoC.

120.19(iv) M/s. Gigaplex Estate Pvt. Ltd. for Demarcation of Built up Floors as Non-Processing Area of a notified IT/ITES SEZ – SEEPZ.

The Board, after deliberations, approved the request of M/s. Gigaplex Estate Pvt. Ltd., Developer, for demarcation of 33,834.28 (9121.10+24713.18) Sq.Mtrs. built-up processing area as Non-Processing Area in terms of Rule 11B of SEZ Rules, 2006 subject to the conditions that No-Dues Certificate as well as other necessary documents are received from the Developer and Certification of duty refund by Specified Officer and DC in the prescribed format is submitted to DoC.

120.20: Request for Co-developer status (1 proposal)

120.20(i) Proposal of M/s. GGG Construction LLP for grant of co-developer status in the IT/ITES SEZ of M/s. Artha Ifnrtech Pvt. Ltd. located at Plot No. 21, Sector Techzone IV, Greater Noida, Uttar Pradesh – NSEZ.



The Board, after deliberations, **approved** the proposal of M/s. GGG Construction LLP for Co-developer status in M/s. Artha Infratech Pvt. Ltd. for Conversion from warm shell to total ready to move in infrastructure and renovation of existing furniture & fit outs including maintaining and managing facility management on One floor (4th floor) of Tower No.1 of approx. 34113 Sqft. Super area of SEZ, in accordance with the Co-developer agreement dated 23.05.2024 entered into with the Developer subject to standard terms and conditions as per the SEZ Act and Rules. Further, the Assessing Officer will have the right to examine the taxability of the income by way of lease rentals/down payment/premium etc. for the purpose of assessment under the prevalent Income-tax Act, 1961 and Income-tax Rules, 1962 as amended from time to time. The lease period shall be in accordance with DoC's Instruction No. 98 dated 29th August, 2019.

120.21: Request for increase/decrease in area by Co-developer (1 proposal)

120.21(i) Request of M/s. Harman Connected Services Corporation India Private Limited, Co-Developer in Manyata Embassy Business Park SEZ for partial surrender of built-up area to the Developer– CSEZ.

The Board, after deliberations, **approved** the proposal of M/s. Harman Connected Services Corporation India Private Limited for partial surrender of built-up area of 33140 sq.ft. to the Developer and retaining the Co-developer status for developing infrastructure facilities over an area of 33,140 (66280-33140) sq.ft. at 2nd Floor of Block-C4 in the SEZ, in accordance with the Co-developer agreement dated 21.05.2024 entered into with the Developer subject to standard terms and conditions as per the SEZ Act and Rules. Further, the Assessing Officer will have the right to examine the taxability of the income by way of lease rentals/down payment/premium etc. for the purpose of assessment under the prevalent Income-tax Act, 1961 and Income-tax Rules, 1962 as amended from time to time. The lease period shall be in accordance with DoC's Instruction No. 98 dated 29th August, 2019.

120.22: Request for extension of validity of formal approval (1 proposal)

120.22(i) Request of M/s. Phoenix Spaces Pvt. Ltd. for further extension of the validity period of formal approval, granted for setting up of IT/ITES SEZ at Sy. No. 286 & 287, Puppalguda beyond 30.3.2024 – VSEZ.

The Board, after deliberations, **approved** extension of the validity of formal approval for one year i.e., upto 30th March, 2025.

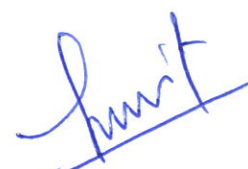
120.23: Request for extension of LoA of Unit (1 proposal)

120.23(i) Request of M/s. Alaya International Private Limited in M/s. FAB City SPV (India) Pvt. Ltd. SEZ for extension of LOA beyond 25.09.2023 for extension up to 25.09.2024– VSEZ.

The Board, after deliberations, **approved** extension of validity of LoA for one year i.e., upto 25th September, 2024.

Decision on Supplementary Agenda III:

120.24: Request for partial de-notification (2 proposals)



120.24(i) Request of M/s. Global Village Techparks Ltd. (formerly M/s. Tanglin Developments Ltd.) for partial de-notification of 12.809 Ha out of 27.434 Ha of their IT/ITES at Bangalore, Karnataka - CSEZ.

The Board, after deliberations, **recommended** the partial de-notification of 12.809 Ha out of 27.434 Ha of M/s. Global Village Techparks Ltd. (formerly M/s. Tanglin Developments Ltd.), IT/ITES SEZ at Bangalore, Karnataka.

120.24(ii) Request of M/s. State Industries Promotion Corporation of Tamil Nadu (SIPCOT) Limited for partial de-notification of 10.10 Ha out of their 60.71 Ha Multi-Product SEZ at Industrial Park, Bargur, Krishnagiri, Tamil Nadu - MEPZ.

The Board, after deliberations, **recommended** the partial de-notification of 10.10 Ha out of their 60.71 Ha of M/s. SIPCOT Limited, Multi- Product SEZ at Industrial Park, Bargur, Krishnagiri, Tamil Nadu.



Annexure

List of Participants for the Meeting of the Board of Approval for SEZ held on 18.06.2024 under the Chairmanship of Commerce Secretary, Department of Commerce.

1. Shri Sunil Barthwal, Chairman & Commerce Secretary, Department of Commerce
2. Shri L. Satya Srinivas, Additional Secretary, Department of Commerce
3. Ms. Reshma Lakhani, Pr. DG, DGEP, DoR
4. Shri Ravinder Kumar, Joint Director, DGEP, DoR
5. Shri Ranjan Khanna, Pr. ADG, DGEP
6. Shri Vimal Anand, Joint Secretary, DoC
7. Shri Senthil Nathan S, Director, DoC
8. Smt. P. Hemalatha, Development Commissioner, CSEZ
9. Shri Bipin Menon, Development Commissioner, NSEZ
10. Shri Dinesh Singh, Development Commissioner, KASEZ
11. Shri Alex Paul Menon, Development Commissioner, MEPZ-SEZ
12. Shri D.B. Patil, Development Commissioner, SEEPZ-SEZ
13. Shri Srinivas Muppaala, Development Commissioner, VSEZ
14. Shri R.A. Praveen Kumar, Joint Development Commissioner, APSEZ

List of participants connected with Video Conferencing:-

1. Shri SBS Reddy, Additional DGFT
2. Shri S.C. Agarwal, DC, GIFT SEZ
3. Shri Neeraj Rawat, D/o Legal Affairs
4. Shri D.B Singh, Development Commissioner, FSEZ
5. Dr. Praveen Development Commissioner, Mihan SEZ
6. Shri Suvidh Shah, DC, Indore SEZ
7. Shri Lokesh H D, Development Commissioner, Dahej SEZ
8. Shri Abhimaniu Sharma, Development Commissioner, Surat SEZ
9. Shri Anil Kant Mishra, Research Assistant TCPO, Ministry of Housing & Urban Affairs, Vikas Bhawan, I.P. Estate, New Delhi
10. Dr. Pawan Kumar, Associate Town and Country Planner, MoHUA
11. ADG, DGFT, Ahmedabad
12. Department of Industries, Haryana

